

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 08/19/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	Johnson – Trust; 30-2024-01427023	Motion to Quash Petitioner Tricia M. Johnson's unopposed Motion to Quash Deposition Subpoena Served on the Kaiser Foundation, etc. (ROA 99) is GRANTED. This proceeding arises out of a petition filed seeking instructions regarding the Patricia J. Johnson Revocable Trust dated February 11, 2019 (Trust). According to the petition, the settlor of the Trust, Patricia J. Johnson, passed away on January 8, 2023. (ROA 1 at 5:16-17.) Thereafter, her daughter Amy Lynn Bromley became trustee. Pursuant to the initial terms of the Trust, Amy would receive 50% of the Trust assets with her brothers Steven Edward Johnson and Russell Phillip Johnson, receiving 25% each. (ROA 2 at 3:18-27.) Under the terms of document entitled "Chattel Schedule," executed in October 2019, Amy allegedly would receive 100% of the real property (the primary Trust asset), while Steven and Russell would receive "Proceeds of Unsecured Promissory Note in the Sum of \$500,000 from Amy." (ROA 2 at 4:23-5:14.) In September 2024, Petitioner Tricia M. Johnson, Steven's wife, filed a petition (Petition) seeking, in part, to void the Chattel Schedule amendment to the Trust on the ground of the settlor's undue influence and diminished capacity. Steven had been diagnosed with dementia, so Tricia filed on his behalf pursuant to a financial power of attorney. (ROA 2 at 2:10-14.)

		Amy objected to the Petition on various grounds, including the assertion Tricia lacked standing to file the Petition because Steven lacked the capacity to sign financial power of attorney. (ROA 14 at 2:6-12.) Steven passed away in April 2025. (ROA 99 at 17:6.) Tricia is Steven's surviving spouse, the trustee of Steven's revocable living trust, and the nominated executor of Steve's will. (ROA 99 at 17:7-12.) In July 2025, Tricia supplemented her petition to assert her standing to pursue the petition as Steven's successor in interest. (ROA 21.) In April 2026, Amy served a series of subpoenas, including the subpoena that is the subject of the motion to quash currently before the court. The subpoena seeks Steven's medical records from Kaiser Permanente. Tricia's motion seeks to quash that subpoena on grounds of relevance, privilege, and privacy. Amy as the subpoenaing party bears the burden of showing a ""plausible justification"" for acquiring documents from a third party." (<i>Facebook, Inc. v. Superior Court (Touchstone)</i> (2020) 10 Cal.5th 329, 345.) Amy did not file any opposition to the motion. Accordingly, she fails to meet her burden. Further, the subpoena does not seek documents relevant to the Trust or any issue raised by the Petition. Steven's medical records are relevant only to Amy's assertion that the power of attorney under which Tricia filed the Petition was void based on Steven's lack of capacity. Amy, however, is now proceeding as Steven's successor in interest. (Code of Civ. Proc., § 377.30 et seq.) No dispute is presented by the pleadings as to Tricia's standing as successor in interest. Because the pleadings govern what is relevant and in the absence of any opposition, the motion to quash is GRANTED. Amy is directed to give notice.
2	Pickler – Trust; 30-2025-01478211	DISMISSED

3	Costa – Trust; 30-2024-01399805	Motion to Enforce Settlement Petitioner Tracy Andrews’ Motion to Enforce Settlement, etc. (ROA 81) is DENIED. In February 2026, Petitioner Tracy Andrews (Petitioner) and Respondents Anton Pereyra and Theresa Pereyra (Respondents) entered a stipulation (Settlement) intended to resolve a pending probate proceeding arising out of the Larry S. Costa Separate Property Trust (Trust). As relevant to this motion currently before the court, the Settlement mandated \$175,000 would be paid into a trust for Petitioner’s daughter, Ruby. The Settlement includes a provision allowing this court to retain jurisdiction under Code of Civil Procedure section 664.6 (section 664.6). (ROA 74 at p.14.) Section 664.6 reads, in full: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” Section 664.6 “was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” (<i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809.) Petitioner’s motion to enforce the Settlement asks this court to direct Respondents to draft Ruby’s trust to: (1) include “a discretionary HEMS [health, education, maintenance, and support] provision authorizing the trustee to distribute income and principal and (2) remove any restriction or reservation that would prevent or impair HEMS distributions, including any spendthrift clause. (ROA 81 at 6:7-16.) “A settlement agreement is a contract, and the legal principles which apply to contracts generally

apply to settlement contracts.” (*Monster Energy Co v. Schechter* (2019) 7 Cal.5th 781, 789.) The fundamental goal of contractual interpretation is to “give effect to the mutual intention of the parties as it existed at the time of contracting.” (Civ. Code, § 1636.) The language of a contract “govern[s] its interpretation.” (Civ. Code, § 1637.) “When a contract is reduced to writing, the intention of the parties is to be ascertained from the writing alone, if possible.” (Civ. Code, § 1638.) “The words of a contract are to be understood in their ordinary and popular sense.” (Civ. Code, § 1644.) “Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment [citations], nothing in section 664.6 authorizes a judge to *create* the material terms of the settlement, as opposed to deciding what terms *the parties themselves* have previously agreed upon.” (*Hernandez v. Board of Education* (2004) 126 Cal.App.4th 1161, 1176.)

On the issue of Ruby’s trust, the Settlement states only: “The sum of One Hundred Seventy-Five Thousand (\$175,000.00) shall be made payable to an Irrevocable Trust created by RESPONDENTS for the benefit of RUBY (“RUBY TRUST”) (“RUBY TRUST PAYMENT”), with the following provisions. [¶] i. RUBY shall be the sole beneficiary of RUBY’S TRUST. [¶] ii. PETITIONER shall be the sole contingent remainder beneficiary of RUBY’S TRUST. [¶] iii. The Trustee of RUBY’S TRUST shall be a Private Professional Fiduciary (“PPF”) selected by RESPONDENTS. If RESPONDENTS are unable to locate a PPF who will agree to serve as Trustee of RUBY’S TRUST within 60 (sixty) days after the [Settlement] is fully signed by the PARTIES, PETITIONER will serve as Trustee of RUBY’S TRUST. [¶] iv. RUBY’S TRUST shall be payable in full to RUBY as sole beneficiary, to be paid on the date that RUBY attains the age of twenty (25) [sic] years. [¶] v. Within three (3) days after the RUBY PAYMENT has been deposited in an account in the name of RUBY’S TRUST, RESPONDENTS, by and through their attorney, shall provide PETITIONER with written confirmation that the RUBY TRUST PAYMENT has been made.” (ROA 74 at pp. 4-5.)

		The Settlement specifically gives Respondents the power to create Ruby's trust and does not include any requirement that a HEMS provision be included or that any spendthrift or other similar provision not be included. As stated above, the court can only enforce the terms of the Settlement. The motion asks the court to create terms beyond those set forth in the Settlement. Accordingly, the motion is DENIED. Respondents' opposition asks the court to award attorneys' fees of \$2,700 to Respondents pursuant to the attorneys' fees provision in the Settlement. (ROA 74, § C (10).) The provision states the prevailing party on any dispute between the parties regarding the Settlement "shall be entitled" to the reasonable costs and expenses incurred. The court GRANTS Respondents' request for attorneys' fees in the amount of \$2,000. Respondents are directed to give notice.
4	Stellino – Probate; 30-2020-01169626	Motion to Set Aside Administrator Nicholas A. Stellino's Motion to Set Aside Order, etc. (ROA 132) is GRANTED in part and DENIED in part as set forth below. By his motion, Administrator asks the court to set aside its August 12, 2022 order approving the first and final account as supplemented and issue an amended order. The court denies the request to set aside the initial order but grants the request to amend the order to include: (1) the other names by which Decedent Antonio Francis Stellino was known; and (2) the legal description of the real property located and improvements located at 2210 Clark Lane, Redondo Beach, California 90278. Administrator is directed to submit a proposed order making the above-referenced changes for the court's review and signature no later than August 26, 2026. Administrator is directed to give notice.

5	Newman – Trust; 30-2024-01372473	
6	Anderson/Callahan – Trust; 30-2024-01389721	
7	Nguyen – Conservatorship; 30-2023-01345985	Motion to Modify Order Petitioner Ngoc Hong Nguyen’s Motion to Modify April 29, 2026 Order on Motion on Independent Geriatric Evaluation (ROA 508) is DENIED. Pursuant Code of Civil Procedure sections 128(a)(8) and 1008(a), Ngoc Hong Nguyen (Ngoc) asks the court to modify its April 29, 2026 order (ROA 492) on Ngoc’s motion for an independent geriatric evaluation (ROA 419). Section 1008 reads, in pertinent parts: “(a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part . . . any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and <i>based upon new or different facts, circumstances, or law</i>, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. . . .

“(e) This section specifies the court’s jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court *unless made according to this section.*”

(Emphasis added.)

The requirement of “new or different facts, circumstances or law” is jurisdictional. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500 [“a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon ‘new or different facts, circumstances, or law’”].) Further, a party seeking reconsideration pursuant to Section 1008 must explain why the allegedly new or different facts, circumstances or law were not previously presented. (*Evan Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 833.) “The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it’ at the original hearing.” (*Craddock v. Hilton Domestic Operating Co, Inc.* (2025) 112 Cal.App.5th 284, 304.)

Ngoc’s motion does not present “new or different facts, circumstances, or law” within the meaning of section 1008. Accordingly, the court is without jurisdiction to consider the motion for reconsideration under Section 1008.

However, a court may always reconsider its own ruling, even at a party’s suggestion outside of Section 1008. As explained in *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1105: “We cannot prevent a party from communicating the view to a court that it should reconsider a prior ruling (although any such communication should never be ex

		parte). We agree that it should not matter whether the judge has an unprovoked flash of understanding in the middle of the night or acts in response to a party's suggestion. If a court believes one of its prior interim orders was erroneous, it should be able to correct that error no matter how it came to acquire that belief." Under that authority, the court reconsiders its prior ruling, taking into account the arguments of the parties on the motion for reconsideration (which was fully briefed). Having considered those arguments, the court denies the request to modify the order. The order does not specify the amount Ngoc must pay for the examination, nor does it deny the opportunity to use insurance to pay for all or a portion of the examination. The order requires only that Ngoc pay whatever amount must be paid, subject to reapportionment. Similarly, the court did not and will not direct the Health Assessment Program for Seniors (HAPS) at University of California, Irvine as to who should conduct the examination or how it should be conducted. That is and should be left to HAPS, the entity with knowledge and experience in the field. The motion is DENIED. The original order stands. Opposing party is directed to give notice.
8	Williams – Trust; 30-2025-01533843	MOTION TO SET ASIDE Wendy Williams’ Motion to Set Aside/Vacate (ROA 63) is DENIED. By her motion, Wendy Williams seeks an order vacating “any orders entered without my notice or participation” on the ground she did not receive notice of the proceeding. The proceeding was initiated on December 12, 2025 when Petitioner Anne Williams filed a petition regarding the Albert James Williams and Anne Williams Living Trust dated August 26, 2021 (Trust). The petition was set for hearing on May 27, 2025.

		On December 24, 2025, Petitioner filed an ex parte application seeking to remove Melanee Carpenter Lay as successor trustee of the Trust. (ROA 29.) The ex parte asked the court to dispense with notice to the interested parties other than Petitioner and Melanee Carpenter Lay as the requested relief did not affect any potential interest in the trust. On December 30, 2025, the court suspended Melanee Carpenter Lay as trustee of the Trust. On January 8, 2026, the court appointed Cynthia Troup interim trustee. (ROA 55.) The December 30, 2025 and January 8, 2026 orders are the only orders entered to date without notice to Wendy Williams. The court has the power to suspend and appoint trustees without notice to potential beneficiaries. (Prob. Code, §§ 15642 & 17206; <i>Schwarz v. Labow</i> (2008) 164 Cal.App.4th 417, 427-428.) Accordingly, the motion is DENIED. Petitioner is directed to give notice.
9	Bent - Probate; 30-2024-01429924	VACATED